

Thus, the court awards Geoulla 24.9 at \$450 and Josephson 20.0 at \$350, for a total of \$18,205.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507004	IBARRA vs MARTINEZ	MOTION TO SET ASIDE DEFAULT, AND MOTION TO QUASH SERVICE OF SUMMONS

Tentative Ruling: Defendants Michael Martinez ("Martinez") and 27th Group Design & Develop LLC ("27th Group") Motion to Quash is granted; the entry of default is set aside.

Order to show cause is set for 10/27/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to PLAINTIFF AND RUSSELL RAD.

Quash Service Of Summons (C.C.P. § 418.10)

Under California Code of Civil Procedure § 418.10(a)(1), a defendant may file a motion to quash service of summons on the ground of lack of jurisdiction of the court over him or her. Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371) In the absence of valid service of summons, the court never acquires jurisdiction over the defendant, and any subsequent order or default entered is a nullity. C.C.P § 418.10(a).

A defendant is under no duty to respond in any way to a defectively served summons. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392). Furthermore, a defendant's actual knowledge of the action does not dispense with the statutory requirements for service of summons and is not alone sufficient to confer jurisdiction.

To be valid, a summons must be officially issued by the Court Clerk before it can be served (Code of Civil Procedure Section 418.10(a)(1) and *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371). Here, the process server claims he personally served Michael Martinez on December 19, 2025 (Exhibit 1 to the Declaration of John Molina, Esq.), yet the Summons was not issued by the Clerk until February 13, 2026 (Exhibit 3 to the Declaration of John Molina, Esq.). Service of an unissued summons is a jurisdictional defect that cannot establish personal jurisdiction (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371).

Under California Evidence Code Section 647, a registered process server's return creates a rebuttable presumption of proper service (pursuant to Evidence Code Section 647). However, a defendant's sworn declaration of non-service, if credited, is sufficient to rebut the presumption (*Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940, n. 6).

Even if the Summons had been issued, the Court finds that Defendants have successfully rebutted the presumption of proper service established under California Evidence Code Section 647. Plaintiff relies on the return of registered process server Grigor Melkonyan, acting on behalf of ABC Legal Services, LLC, which asserts that personal service was made on Martinez on December 19, 2025, at 409 East 224th Street, Carson, CA. Under

California Evidence Code Section 647, this return is entitled to a rebuttable presumption of validity.

Defendant Michael Martinez has established that: (1) he has never resided at or had any connection with the 409 East 224th St., Carson, CA 90745 address where service occurred (Declaration of Michael Martinez, Paragraph 5), and (2) his physical description does not match the description in the Proof of Service (Declaration of Michael Martinez, Paragraph 6). The process server described a white male, 45-55, 5'6"-5'8", 180-200 lbs., with an accent (Exhibit 1 to the Declaration of John Molina, Esq.). Martinez is actually a Hispanic male, brown skin, dark black hair, younger, over 250 lbs., much taller than 5'8", with no accent (Declaration of Michael Martinez, Paragraph 6).

This severe physical discrepancy and total lack of residential connection successfully rebuts the presumption of proper service. Because the burden shifted to Plaintiff to prove valid service, and Plaintiff failed to provide additional corroborating evidence of personal service, personal jurisdiction was never established (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160).

Plaintiff attempted service on the limited liability company solely by serving Michael Martinez as its managing member (Exhibit 2 to the Declaration of John Molina, Esq.). Because service on Michael Martinez failed, service on the LLC also fails. Moreover, Martinez declares that 27th Group was "not in existence at the time of the purported service" on December 19, 2025, and therefore could not have been served (Declaration of Michael Martinez, Paragraph 4).

Plaintiff argues that 27th Group is suspended by the California Franchise Tax Board, lacks capacity to defend this action, and cannot bring the instant motion. While it is true that under California Revenue and Taxation Code Sections 23301 and 23301.5, a suspended LLC lacks capacity to prosecute or defend a civil action (*Timberline, Inc. v. Jaisinghani* (1997) 54 Cal.App.4th 1361, 1366), this rule does not apply to a challenge to the court's personal jurisdiction Under C.C.P., § 418.10(a). Personal jurisdiction is a fundamental constitutional requirement (*Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961). A court cannot exercise power over an entity that was never served with process, and the court has an independent due process obligation to set aside a void default entered against an unserved party (*Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961).

C.C.P. § 473(B)

Under California Code of Civil Procedure Section 473(b), a court may relieve a party from a default taken against them through their "mistake, inadvertence, surprise, or excusable neglect" (pursuant to C.C.P. Section 473(b)).

Defendants were never served with the Summons and Complaint, nor were they served with the Request for Entry of Default, which was mailed to the incorrect Carson address (Declaration of Michael Martinez, Paragraphs 4, 5, and 8). They first learned of the default on May 22, 2026, when their counsel received a notice of rejection from the Court (Declaration of Michael Martinez, Paragraph 8; Declaration of John Molina, Esq.,

Paragraph 6). This complete lack of notice constitutes "surprise" under C.C.P. Section 473(b).

Defendants' counsel acted immediately on May 22, 2026, by emailing Plaintiff's counsel to request a voluntary set-aside of the default (Exhibit 5 to the Declaration of John Molina, Esq.). Defendants executed their motion on May 28, 2026 and filed it on June 26, 2026. This is well within the six-month statutory deadline and constitutes a "reasonable time" pursuant to C.C.P. Section 473(b) and *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.

California favors trials on the merits, and doubts must be resolved in favor of granting relief (pursuant to *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134). Where a party in default moves promptly for relief and no prejudice to the opposing party will result, only "very slight evidence" is required to justify setting aside the default (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233).

Because Plaintiff's sole basis for claiming personal jurisdiction over 27th Group was the purported personal service on Michael Martinez, the quashing of service on Martinez in his individual and representative capacity completely eviscerates the court's jurisdiction over 27th Group. The Court cannot allow a void default to stand against an unserved entity where the jurisdictional defect is clear from the record (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370-371). Thus, the default is set aside as to both Defendants.

C.C.P. § 473.5 (Lack Of Actual Notice)

Under California Code of Civil Procedure Section 473.5(a), when service of process does not result in actual notice to a party in time to defend the action, the court may set aside the default if the lack of notice was not caused by avoidance of service or inexcusable neglect (C.C.P. Section 473.5(a) and (b)).

Defendant Michael Martinez's declaration establishes that the purported service did not result in actual notice of the lawsuit in time to defend and that his lack of notice was not due to avoidance of service or neglect (Declaration of Michael Martinez, Paragraphs 4-5 and 7-8).

The motion was filed on June 26, 2026, which is well within the statutory limit of 180 days from any written notice of default or entry of judgment (C.C.P. Section 473.5(a)) and is supported by a copy of the proposed responsive pleading as required (C.C.P. Section 473.5(b)).

Plaintiff's argument that a fifty-six day delay was a mere "technical sequencing" resulting from "court administrative delay" is legally erroneous. Service of process must strictly comply with statutory procedures to establish personal jurisdiction (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371). A plaintiff cannot deliver an unissued document and "retroactively" validate service when the clerk eventually issues the summons months later. Accordingly, the purported service of December 19, 2025, was void.

Plaintiff argues that Defendants' counsel, John Molina, Esq., had actual knowledge of the lawsuit since May 2026, and that Defendants' refusal to accept service is a delay tactic.

However, a defendant is under no duty to respond to a defectively served summons (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392. It makes no difference that a defendant has actual knowledge of the action "actual knowledge of the action does not dispense with statutory requirements for service of summons and is not alone sufficient to confer jurisdiction" (*Id.*).

Equitable Relief (Extrinsic Mistake)

A trial court has inherent equitable power to set aside a default on the ground of extrinsic mistake where the moving party demonstrates: (1) a meritorious defense, (2) a satisfactory excuse for not defending, and (3) diligence in seeking relief (pursuant to *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982).

The lack of service and the erroneous filing of a Proof of Service at an address with which Martinez has no connection constitute an "extrinsic mistake" that deprived Defendants of an opportunity to present their defense (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229).

Defendants have demonstrated a meritorious defense to the contract claims a satisfactory excuse (lack of notice) (Declaration of Michael Martinez, Paragraphs 4 and 8), and exceptional diligence in filing this motion once the default was discovered in May 2026 (Declaration of John Molina, Esq., Paragraphs 5-7).